INDOSPACE

PURCHASE ORDER

Indospace Industrial Park Badli Pvt. Ltd.		**Name and address of Supplier :**
Billing Address:-		Nihva Technologies Pvt Ltd
Village Pahasour (Faizabad), Post Office Badli, Jhajjar-Badli Road, Near Don Bosco School, Tehsil & District - Jhajjar		187 / G-Block, 1st Floor, Thermax Chow k, MIDC, Above Renault Show room,Chinchw ad
Jhajjar		Pune - 411019
Haryana,124105		Maharashtra, India
India		Cont No.:020-66304033
		TIN NO :
GSTIN : 06AAECT9583G1ZX		GSTIN :27AAECN0437H1ZM
PAN NO :AAECT9583G		**PAN NO : AAECN0437H**
Purchase Order No.	**WO-IIPBPL/2018/NMRNB900/66**	**Dock Equipments**
Description of Work		**Supply of Dock Bumpers for Bldg-900, Badli site**
Purchase Order Value (Including Taxes)		**Rs. 84,960**
Additional Taxes Details		**IGSTIGST Input @ 18%**
Total Tax Amount		**Rs. 12,960.00**
Total PO Value:	**(Rupees Rupees: Eighty Four Thousand Nine Hundred Sixty)**	**Rs.84,960**
Please arrange to execute the follow ing at our site Indospace Neemrana, B-900		
Annexure Forming Part of PO		**1> Annexure 1 for T&C**
		2> Annexure 2 for B.O.Q
		3> Annexure 3 for Particular T&C
Date of Commencement:- Jun 25, 2018		Date of Completion:- Nov 30, 2018
Note:-		
1>Please Indicate the above Purchase Order No. on all invoices, delivery challans and correspondence. 2>Please return the duplicate of this order duly signed. 3>Detailed Terms and conditions as per enclosed and Technical Specifications.		

I have read all the terms & conditions and this supply is hereby accepted.

Date :
Signature:
Designation:
Seal Of the Company:

INDOSPACE INDUSTRIAL PARK BADLI PVT. LTD.

AUTHORISED SIGNATORY COMPANY
For Indospace Industrial Park Badli Pvt. Ltd.

Date :
Signature:
Designation :
Seal Of the Company :

AUTHORISED SIGNATORY SUPPLIER
For Nihva Technologies Pvt Ltd

Indospace Industrial Park Badli Pvt. Ltd.
Jhajjar-Badli Road,,Near Don Bosco School, Village Pahasour Faizabad,
Jhajjar-
Haryana,India

27/06/2018

Annexure 1

1. **Tender Amount:**
The value of supply will be of **INR 84,960 (INR Rupees: Eighty Four Thousand Nine Hundred Sixty only)** including all taxes, duties and Govt. levies as quoted by you. Any statutory variation and change in Government policies and taxes shall be paid at actual. Summarized version of the price breakup is as per attached Annexure-I, the payment terms and conditions are as per below :
The Accepted Supply Amount and all rates and prices contained in the Supply shall be inclusive of all taxes and duties as applicable for the project currently the Entry tax and Octroi are not applicable. However, in case at later stage these are applicable the same shall be paid to you extra, as per the state Govt. rules. Any change in applicable taxes and government levies from the present applicable rate, application or imposition of any new / special tax by the government shall be charged as per actual applicable rate during the time of, delivery of material.
2. **Supply Programme**
A detailed supply programme depicting your planned sequence of supply in an approved format on MS Project shall be submitted to us within 14 days of this order- The said programme, upon approval by the Engineer, will form the basis of establishing performance on site.
3. **Subcontractors**
Details of all sub-contractors/supplier to be engaged for the Supply shall be submitted for the Engineer's approval before their appointment as subcontractors. If applicable.
4. **INDEMNITY**
You shall indemnify and keep the employer indemnified from and against any loss, damage, expense (including legal costs on a full indemnity basis) or liability (whether criminal or civil) and costs of settlement suffered or incurred by us due to any neglect or default by you agents, employees, Partners, directors or representatives of you or due to any breach of understanding & loss, regulation and other statutory requirements in force in the territory or any other reason so long as such loss, expense, damage fees or costs resulted from the acts, operations or negligence of you.
5. **INSURANCE**
Workmen Compensation, Third Party Liability insurance cover for any no. of claims, Suppliers' Plants & Machines and motor vehicles, CAR policy including the earthquake risk coverage to be taken as per the details indicated in tender document will be under the scope of the Supplier. The copies of all relevant documents are required to be submitted to the client within 7 days of the start of the project or issuance of Purchase Order. The relevant insurance cover shall remain in force till full commissioning and hand-over of the completed scope of supply.
6. **SPECIFICATIONS**
All supply will be executed in conformity with the specifications mentioned in the tender document and design drawings issued with the BOQ and tender documents and good for construction drawings which form part of the supply.
7. **GENERAL AND SPECIAL CONDITIONS OF SUPPLY**
All supply will be executed in conformity with general conditions, special conditions of supply and technical specifications issued with the tender documents and design drawings, which form part of the supply..
8. **PRICE BASIS**
The price quotation conforms to the design details, the tender specifications and conditions.
9. **MATERIALS**
All materials shall be of the best quality of its type and strictly in conformity with the material and finish described in the specifications enclosed with the tender. Vendor will submit the samples of the relevant material to be used at site to the Project Manager and obtain quality approval from the consultants on the same. No compensation would be granted on account of rejected material.
10. **STORAGE**
The delivery of the products shall be consistent and scheduled with the progress of the installation work. In case of incoming material with possibility of damage during transit or installation, necessary protective packing shall be provided, to prevent the damage during handling, storage and installation.
11. **LIABILITY FOR SAFE KEEPING OF MATERIAL AT SITE**
The liability for safe keeping of material delivered at site is with vendor. Any damage/loss/theft of the material shall be the responsibility of the supplier and **M/s. Indospace Industrial Park Badli Pvt. Ltd.** shall not be responsible for any extra cost on account of the loss/theft/damage.
12. **EXTRA VARIATION ITEMS**
No extra item to be executed without prior written approval of M/s. Indospace Industrial Park Badli Pvt. Ltd.
In case the extra items are to be operated then the rates will be works based on following.
I. The items similar in existing supply, the rates of such items shall be derived from existing supply items rate.
II. The items not similar in existing supply, the rates of such items shall be derived as given below .

13. **PROTECTION OF WORK**
Vendor shall protect his supply at all times from all anticipated acts and conditions, till the time it is formally handed over to and accepted by the client. No claims against damage of works at site shall be entertained. The cost of protection shall be borne by vendor.
14. **BASIC RATES FOR MATERIALS**
Refer Basic Rates of materials mentioned in BOQ (if applicable). The rates mentioned are FOR at site with 30 days credit period. The vendor to get the rates approved as required in advance from Client before purchase of the same.
15. **VALIDITY OF RATES**
The rates are valid for the Project duration or supply period whichever is later and shall remain firm for a period of 36 months.

16. **STATUTORY REQUIREMENTS & LOCAL ISSUES**

- Vendor shall be responsible for all the statutory compliance. Client shall only provide the necessary document supports.
- Vendor shall handle all the local issues before and during execution of supply.

17. **FORCE MAJEURE**

Force Majeure means any act, circumstances or event or a combination of acts, circumstances and events of natural calamities like cyclone, war, earthquake, any law, ordinance or order of central or state government, or any direction of a statutory regulatory authority, which are beyond the control and without the fault or either the Employer or the Supplier.

18. **DISPUTE RESOLUTION AND GOVERNING LAW:**

18.1 Any claim arising out of or attributable to the interpretation or performance of this SUPPLY, and/ or Variation Orders, if any, which cannot be resolved by mutual discussions, clarifications and negotiation, shall be considered a dispute within the meaning of this clause.

18.2 All disputes of any kind whatsoever that may arise between the CLIENT and the SUPPLIER in connection with, or arising out of, this SUPPLY and/ or Variation Orders, if any, or the execution of the Services, whether during the execution of the Services or after their completion and whether before or after repudiation or termination of this SUPPLY, including any dispute as to any opinion, instruction, determination, certificate, the matter in dispute shall in the first place, be settled amicably through consultation between the parties. In the event of same being not settled amicably, then the same shall be left solely to be decided by the CLIENT and CLIENT's decisions in respect of such dispute shall be final and binding upon the SUPPLIER and that the SUPPLIER shall accept the same without any default or demur or protest and that the SUPPLIER undertakes and agrees that SUPPLIER shall not challenge the final decision of the CLIENT in respect of any such dispute, in any manner whatsoever.

18.3 It is distinctly agreed and understood that the existence of any claim or dispute or any related proceedings will not entitle the SUPPLIER to stop or delay the Supply in any manner whatsoever and SUPPLIER shall continue to perform the supply in accordance with the provisions of the SUPPLY and/ or subsequent variation orders, if any and in accordance with the CLIENT's instructions with all due diligence and dispatch and perform all its obligations under the SUPPLIER.

19. **ANTI CORRUPTION:**

The Parties represent that they have zero tolerance of bribery, fraud and corruption and agree that they shall comply with the following during the Supply Period. Any failure by the Parties to comply with the following will constitute a breach of this Supply and will entitle the other Party to terminate the Supply.

The Parties undertake and warrant to the other Party that neither it nor any member of the Parties or their group, nor any agent, consultant or other intermediary acting on behalf of the Parties shall, directly or indirectly, in relation to the Supply give, promise or attempt to give, or approve or authorize the giving of, anything of value, to:

for the purpose of (i) securing any improper advantage for the Parties or their group; (ii) inducing or influencing that Public Official improperly to take any action or refrain from taking any action in order for the Parties to obtain or retain business, or to secure the direction of business or (iii) inducing or influencing that Public Official to use his/her influence with any Government or public international organization, or any or any department, agency or other instrumentality thereof, for any such purpose.

The Parties agree and undertake that they will keep and maintain accurate and reasonably detailed books and financial records in connection with their performance hereunder, and payments made or received in connection with the Supply. Upon request, the Parties or their group shall have the right to audit and examine the relevant books and financial records to test compliance with this Supply and the representations, warranties and undertakings herein. The Parties shall provide any information and assistance reasonably required in connection with such an audit, including access to its key personnel.

a. any employee, officer or director of or any person representing the other Party or their group;
b. any other person, including any Public Official;
c. a political party or a labour union controlled by any Government or political party; or
d. charitable or other organization, or an officer, director or employee thereof, or any person acting directly or indirectly on behalf of the same;

20. **SUSPENSION:**

20.1 The CLIENT may at its sole discretion be entitled to suspend the services under this SUPPLY and/ or Variation Orders/Amendment Orders if any, partially or as a whole, without cause by giving written 15 (fifteen) days' notice to the SUPPLIER, specifying the part of the Services and the effective date of such suspension. During the period of such suspension the SUPPLIER shall continue to perform the unsuspended parts of the Services. The SUPPLIERshall during the duration of suspension not be entitled to any amounts and or consideration with respect to the suspended portions of supply and shall also not be entitled to any Consideration for loss of earnings or Consideration that would have been earned on the suspended portion of the Services.

20.2 If the Suspended portion of supply is abandoned by the CLIENT within a period of 6 (Six) months and the same is notified to the SUPPLIER in writing then those suspended/abandoned services shall be deemed terminated for the convenience of the CLIENT

20.3 In the event of such termination for convenience the SUPPLIER shall be entitled only to Consideration for supply done till the date of suspension.

20.4 In the event the supply of any substantial part have been suspended for more than consecutive 180 days (06 months). The CLIENT shall within 30 days of expiry of such 6 (six) months intimate to the SUPPLIER its intention to terminate and/ or its intention to reimburse the SUPPLIER at actual costs incurred by the SUPPLIER to keep its resources on the site. The CLIENT shall be entitled to such extension on such terms for further 3 (three) months from the date of acceptance of such written notice to extend. However if the resources are required to be continued at the site beyond the extended period of 3 (three) months, in that event the SUPPLIER and the CLIENT shall mutually consider the terms of such further extension under a Variation Order. Any payments made on actual shall be subject to the SUPPLIER providing proofs of such incurred cost.

21. TERMINATION

21.1 Optional Termination:

The CLIENT may at its own option be entitled to terminate for convenience any of the supplies in part or whole at its sole discretion by giving 15 (Fifteen) days prior notice to the SUPPLIER. Such notice shall specify the extent to which the performance of the supply is terminated and the effective date of such termination. In case of such termination the SUPPLIER shall be entitled to all amounts due and payable to the SUPPLIER under completed portions of supplies as on the date of receipt of such notice to terminate. In case of partial termination the SUPPLIER shall continue to carry out supplies with respect to the non terminated services under this SUPPLY and or Variation Orders if any.

21.2 Termination for Default

CLIENT shall be entitled to terminate this SUPPLY for default of the SUPPLIER'S contractual obligations if the SUPPLIER:

21.2.1 Performs supply, which fails to conform to the requirements of this SUPPLY;

21.2.2 Fails to make progress so as to endanger performance of this SUPPLY;

21.2.3 Abandons or refuses to proceed with any supply, including modifications directed pursuant to Clause "Changes;"

21.2.4 Fails to fulfill or comply with any of the terms of this Purchase Order;

21.2.5 Engages in behavior that is dishonest, fraudulent or constitutes a conflict of interest with SUPPLIER'S obligations under this SUPPLY; or if

21.2.6 SUPPLIER becomes insolvent or makes a general assignment for the benefit of creditors or reasonable grounds for insecurity arise with respect to SUPPLIER'S performance.

21.3 In the circumstance where the SUPPLIER has defaulted in performing its obligations as mentioned in clause 12.2 hereinabove the CLIENT shall notify the SUPPLIER in writing the nature of default and the CLIENT'S intention to terminate the supply for default if the SUPPLIER does not cure such default in 7 (seven) calendar days from receipt of notification, or sooner if safety is involved. In the event the SUPPLIER fails to comply with the notification and rectify the default within 7 (seven) calendar days the CLIENT shall be entitled to;

21.3.1 Forfeit the Hold Amount and or.

21.3.2 Invoke the Bank Guarantee for such sums as the CLIENT deems fit and or;

21.3.3 Terminate the services in part or whole and or;

21.3.4 Take possession of the utilities ie any data, designs, licenses, equipment, materials, plant, tools and property of any kind furnished and or belonging to the SUPPLIER, that may be necessary to complete the supply and or;

21.3.5 Appoint another SUPPLIER or carry out the supply under this SUPPLY themselves and or;

21.3.6 SUPPLIER shall be liable for all costs in excess of the Consideration/ Supply Price for such terminated supply incurred by the CLIENT in completing the said terminated supply. Including cost of administration of any purchase order awarded to others for completion.

21.4 Upon termination on default the SUPPLIER shall;

21.4.1 Immediately discontinue supply on the date and extent specified in the notice and place no further purchase orders to the extent that they relate to the performance of the terminated supply.

21.4.2 Inventory, maintain and turn over to the CLIENT all data, designs, licenses, equipment, materials, plant, tools and property furnished by SUPPLIER or provided by CLIENT for performance of terminated supply.

21.4.3 As directed by the CLIENT either promptly obtain cancellation upon terms satisfactory to the CLIENT of all purchase orders or any other agreements existing for performance of terminated supply or assign those agreements in favor of CLIENT.

21.4.4 Cooperate with the CLIENT in the transfer of data, designs, licenses and information and disposition of supply in progress so as to mitigate damages;

21.4.5 Comply with all requests of the CLIENT to assist the CLIENT to complete the terminated supply.

21.4.6 Continue to perform in accordance with all the terms and conditions of this SUPPLY and or Variation Orders if any, with respect to portions of supplies that are not terminated.

21.5 The above remedy to the CLIENT shall not exclude the CLIENT from claiming damages as provided under law. However if for any reason it is determined that the SUPPLIER was not in default, the rights and obligations of the parties shall be as if the notice of termination had been issued under the Clause Optional Termination.

21.6 The SUPPLIER agrees that it has no right to terminate this SUPPLY under any circumstance whatsoever.



Please sign the duplicate of this purchase order as a token of your acceptance and return the same for our records. For all project related matters you shall address all your correspondences to our Project Manager.

WO-IIPBPL/2018/NMRNB900/66
Dated: Jun 25, 2018

Annexure 2

Sl.No	BOQ Name	Description of Item.	Work Order Qty	Unit	Rate	Amount
1						
1.1	Supply of Dock Bumpers for Badli, Bldg-900	Supply of Dock Bumpers Size: 250mm (W) x 100mm (D) x 450mm (H) with bolt & fasteners	16.000	Pair	4,500.0000	72,000.00
						72,000.00

Remarks :



INDOSPACE

Annexure -3

Particular Terms & Conditions

1. PAYMENT TERMS

The Payment schedule shall be as under:

100% against delivery of material at site.

- Above rate is inclusive of Transport charges

Necessary documents such as Indents, backup paper, measurement sheet etc. as required by the Indospace / Project Manager shall be submitted for bill certification. Without these, the bills shall not be certified by the IndoSpace / Project Manager.

2. WARRANTY

The supplier has to give warranty of one year for manufacturing and material defect.

3. SPECIFICATIONS

All work will be executed in conformity with the specifications mentioned in the tender document and design drawings issued with the BOQ and tender documents and good for construction drawings which forms part of the contract.

4. BILLING INSTRUCTIONS

All bills on the project to be raised as per the conditions of the contract through Project Manager and addressed to:

Site Address: M/s. Indospace Industrial Park Badli Pvt Ltd.
Village: Pahasour (Faizabad), Post Office Badli, Jhajjar-Badli Road, Near Don Bosco School,
Tehsil & District – Jahjjar.

Billing Address. : M/s . Indospace Industrial Park Badli Pvt Ltd.
Village: Pahasour (Faizabad), Post Office Badli, Jhajjar-Badli Road, Near Don Bosco School,
Tehsil & District – Jahjjar.

5. TIME OF COMPLETION

Vendor will complete the total scope of work as mentioned in the tender document, drawings, etc. **within 15 days.**

INDOSPACE INDUSTRIAL PARK BADLI PVT. LTD.

6. CONTRACTOR REPRESENTATIVE

Mr. Arjun # 8551096333 shall remain the single point of contact as Contractor's representative for the project.

7. TAXES, DUTIES AND OTHER CHARGES

The total cost mentioned above shall cover cost of all labor, materials, professional fees and charges, if any, transport, Govt. levies, Installation charges, profit, all taxes and duties and all incidentals complete. No extra charges shall be payable to the contractor on accounting of taxes, duties or incidentals whatsoever.

8. DEFECTS LIABILITY PERIOD

Contractor shall be responsible for any defects arising in the work executed by you either in the materials used (unless the material has been approved by Architect/ Consultant prior to its installation) or in the workmanship for Twelve (12) Months from the date of virtual completion. Where extended warranties are stipulated in the contract document, appropriate guarantees in approved formats for the same before issuance of the Final Completion Certificate shall be provided by you.

9. "Quality Assurance and Quality Control:
You are expected to perform work of high standard and quality and follow Indospace QA & QC manual. You shall perform quality check as per standard engineering practice and as per Manual and document issued to you from time to time. In case the works carried out by you are found to be of unacceptable quality, the same shall be rectified immediately by the contractor at his own cost or if defects found in the opinion of EIC/Consultant/architect are beyond repairs, the same shall be attended as per QAQC manual or agreed specification (if superiors) immediately at his own cost to the satisfaction of EIC."

INDOSPACE INDUSTRIAL PVT. LTD. GURGAON

Note: Clause no.11, 14, 15 of Annexure-1 is not applicable.